

23CHCV02619 23CHCV02619

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Case Number: 23CHCV02619 Hearing Date: July 8, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 7, 2026

MOTION TO COMPEL FURTHER

DISCOVERY RESPONSES

(Form

Interrogatories, Set Two)

Los Angeles Superior Court

Case # 23CHCV02619

Motion

filed: 1/13/26 JURY TRIAL: 9/8/26

MOVING

PARTY: Defendant

Magic Mountain, LLC ("Magic Mountain")

RESPONDING

PARTY: Plaintiffs

Anne Hawley and William Hawley, individually and as Successors in Interest to Decedent, Christopher Hawley (collectively, "Plaintiffs")

NOTICE: OK

RELIEF

REQUESTED: An

order compelling Plaintiffs' further responses to Magic Mountain's Form Interrogatories, Set Two, No. 17.1.

TENTATIVE

RULING: The

motion is denied.

BACKGROUND

On an unspecified date, Magic Mountain served its Form Interrogatories, Set Two, on Plaintiffs. On 10/13/25, Plaintiffs each served their responses thereto. (Decl. of Sanaz Cherazaie ¶¶ 1–2.) On 1/9/26, Plaintiffs each served supplemental responses. (Id. at ¶¶ 3–4.)

On 1/13/26, Magic Mountain filed the instant motion to compel further responses to its Form Interrogatories, Set Two. On 5/7/26, Plaintiffs filed their opposition. On 5/13/26, Magic Mountain filed its reply.

ANALYSIS

"The

party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following: (1) An answer containing the information sought to be discovered; (2) An exercise of the party's option to produce writings; or (3) An objection to the particular interrogatory." (Code Civ Proc. § 2030.210, subd. (a).) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ Proc. § 2030.220.) "If an objection is made to an interrogatory or to a part of an interrogatory, the specific ground for the objection shall be set forth clearly in the response." (Code Civ Proc. § 2030.240, subd. (b).)

A

propounding party may move for an order compelling further responses to interrogatories if any of the following apply: “(1) An answer to a particular interrogatory is evasive or incomplete; (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc. § 2030.300, subd. (a).) Discovery is relevant if it is admissible as evidence, or “appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc. § 2017.010.) “Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.” (Ibid.)

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Meet
and Confer

A motion to compel further discovery responses must be accompanied by a meet and confer declaration stating “facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. §§ 2030.300, subd. (b)(1); 2016.040.)

Here,
Magic Mountain’s counsel asserts that on 4/17/26, she sent Plaintiffs’ counsel a meet and confer letter regarding the issues raised in the instant motion, but the parties were unable to come to an informal resolution. (Cherazaie Decl. ¶¶ 9–10.) Therefore, the Court finds that counsel has satisfied the preliminary meet and confer requirements under Code of Civil Procedure section 2030.300, subdivision (b)(1).

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RFAs

Here, Magic Mountain seeks to compel Plaintiffs’ further responses to Form Interrogatory No. 17.1, which asks: “Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission: (a) state the number of the request; (b) state all facts on which you base your response; (c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each

DOCUMENT or thing.”

In response to Magic Mountain's Request for Admission Nos. 15–18 and 23–24, Plaintiffs asserted objections based on vagueness and prematurity, and responded that they “presently lacks sufficient information to admit or deny this Request, and therefore denies it on that basis. Plaintiffs' reasonable inquiry is ongoing, and discovery is continuing.” (Def.'s Sep. Stmt. 2:7–15.) In turn, Plaintiffs' responses to Form Interrogatory No. 17.1 assert the same objections, and state that “Accordingly, there are no facts, witnesses, or documents to support a substantive denial because no such substantive denial has taken place. Responding Party's inquiry is ongoing consistent with the joint discovery plan in this case and the Code. Responding Party is open to supplementing its response to this interrogatory if a substantive denial occurs for corresponding requests. This would require that: 1) additional information becomes known enabling Responding Party to deny the underlying request(s); and, 2) Responding Party's valid objections are dealt with.” (Id. at 12:27–13:5.)

Magic Mountain argues that “Plaintiff's responses to Form Interrogatory 17.1 consist primarily of boilerplate objections— including ‘vague and ambiguous,’ ‘premature,’ ‘calls for expert opinion,’ and ‘legal conclusion’— followed by a statement that Plaintiff ‘lacks sufficient information to admit or deny’ after a purported reasonable inquiry.” (Def.'s Mot. 3:7–13.) “Despite denying the underlying RFAs, Defendant failed to identify: ·

Any facts supporting its denials, · Any witnesses with knowledge of the matters denied, or · Any documents supporting its position. This failure defeats the purpose of Form Interrogatory 17.1 and prevents Defendant from evaluating Defendant's defenses and narrowing issues for trial.” (Id. at 4:2–7.)

In opposition, Plaintiffs argue that “Magic Mountain may not like the fact that Plaintiffs do not know something, but Plaintiffs not knowing something is not the same thing as being evasive and incomplete.” (Pls.' Opp. 6:1–2.) For example, “RFA Nos. 15–18 concern what [defendant] SFEC [Six Flags Entertainment Corporation] specifically did and its exact legal roles in the case.” (Id. at 6:10–11.) Plaintiffs maintain that “the only way Plaintiffs will be able to gain sufficient knowledge to respond to these RFAs is through expert and corporate representative depositions that will take place toward the end of discovery. Plaintiffs' objections (prematurity, etc.) and their responses are

correct and Code-compliant.” (Id. at 6:18–21.) “As regards RFA No. 23, this RFA concerned a demand that Plaintiffs admit, categorically, that no person has suffered the same injury on the X2 as Christopher Hawley (a tear of the superior sagittal sinus). ... Plaintiffs have no personal knowledge about other injuries on the X2.” (Id. at 6:22–26.) “As for RFA No. 24, this was about Magic Mountain’s demand that Plaintiffs admit that Christopher Hawley never saw a doctor in the three years prior to his death. This is an improper discovery demand. Christopher Hawley was an adult—twenty-two years old—when he died. For his parents to state, categorically, that Christopher never saw a doctor (as an affirmative fact), makes no sense.” (Id. at 7:4–8.)

In reply, Magic Mountain asserts that it “does not seek further responses to responses to requests for admissions in this motion.” (Def.’s Reply 2:21–22.) Magic Mountain argues that “Plaintiffs should be compelled to provide further responses to Form Interrogatories 17.1, subsections (b), (c), and (d), with either: (1) an answer containing the information sought to be discovered or (2) an exercise of the party’s option to produce writings.” (Id. at 3:10–13.) “If Plaintiffs truly lack sufficient personal knowledge to respond to the interrogatory in full, Plaintiffs shall state the same, but shall verify that they made a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations. (Id. at 3:17–20, citing Code Civ. Proc. § 2030.220.)

Based on the foregoing, the Court finds that Plaintiffs’ responses to Magic Mountain’s Form Interrogatory No. 17.1 are code-compliant. Plaintiffs state that “they were unable to admit or deny these requests after making a reasonable inquiry, and on such basis, denied, because Responding Party lacks sufficient information to do so.” (Def.’s Sep. Stmt. 12:25–26.) This is all that is required under Code of Civil Procedure section 2030.220. Accordingly the Court denies Magic Mountain’s motion to compel Plaintiffs’ further responses to its Form Interrogatories, Set Two, No. 17.1.

CONCLUSION

The motion is denied.

LOS

ANGELES SUPERIOR COURT

NORTH
VALLEY DISTRICT

DEPARTMENT
F-51

JULY 7, 2026

MOTION TO COMPEL FURTHER
DISCOVERY RESPONSES

(Requests for
Admission, Set One)

Los Angeles Superior Court
Case # 23CHCV02619

Motion
filed: 5/15/26 JURY TRIAL: 9/8/26

MOVING
PARTY: Plaintiffs
Anne Hawley and William Hawley, individually and as Successors in Interest to
Decedent, Christopher Hawley (collectively, "Plaintiffs")

RESPONDING
PARTY: Defendant
Magic Mountain, LLC ("Magic Mountain")

NOTICE: OK

RELIEF
REQUESTED: An
order compelling Magic Mountain's further responses to Plaintiffs' Requests for
Admission ("RFAs"), Nos. 4, 11–13, 15, 18, 21–22, 26, 29–35, 37–40, 42, 45–48,
and 51–54. Plaintiffs also seek monetary sanctions in the total amount of \$8,000.00
to be imposed against Magic Mountain and its counsel.

TENTATIVE

RULING: The
motion is denied.

BACKGROUND

On 2/17/26, Plaintiffs served their RFAs, Set One, on Magic Mountain. (Ex. 1 to Decl. of Adam M. Foster.) On 3/24/26, Magic Mountain served its responses thereto. (Id. at ¶ 9.)

On 5/15/26, Plaintiffs filed the instant motions to compel further responses to the subject RFAs. On 6/24/26, Magic Mountain filed its opposition. On 6/30/26, Plaintiffs filed their reply.

ANALYSIS

California law requires a responding party to respond to each propounded request for admission with either a substantive answer or an objection to the particular request. (Code Civ. Proc. §§ 2033.210, subd. (b).) Each substantive answer must: “(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party; (2) Deny so much of the matter involved in the request as is untrue; (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (Code Civ. Proc. § 2033.220, subd. (b).) “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Id. at subd. (c).)

A propounding party may move for an order compelling further responses to requests for admission if any of the following apply: “(1) An answer to a particular request is evasive or incomplete; or (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc. § 2033.290, subd. (a).)

A. Meet and Confer

A motion to compel further

discovery responses must be accompanied by a meet and confer declaration stating “facts showing a reasonable and good faith attempt at an

informal resolution of each issue presented by the motion.” (Code Civ. Proc. §§ 2033.290, subd. (b)(1); 2016.040.)

Here, Plaintiffs’

counsel asserts that on 4/17/26, he sent Magic Mountain’s counsel a meet and confer letter regarding the issues raised in the instant motion, but the parties were unable to come to an informal resolution. (Ex. 3 to Foster Decl.)

Therefore, the Court finds that counsel has satisfied the preliminary meet and confer requirements under Code of Civil Procedure section 2033.290, subdivision (b)(1).

B.

RFAs

As a preliminary matter, the parties submit that Magic Mountain provided supplemental responses to the subject RFAs on 6/23/26, therefore “Plaintiffs withdraw the Motion for the following RFAs, which, after review of Magic Mountain’s supplemental responses, are satisfactory: RFA Nos. 4, 11, 12, 13, 15, 18, 21, 22, 26, 29, 31, 32, 33, 36, 37, 38, 39, 40, 42, 45, 47, 51, and 52.” (Pls.’ Reply 2:26–27, fn.2.) Accordingly, the Court limits its review to Plaintiffs’ RFA Nos. 30, 34, 35, 46, 48, 53, and 54.

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1.

RFA No. 30

Plaintiffs’ RFA No. 30 asks Magic

Mountain to “Admit that YOU performed SARC testing after Christopher Hawley’s injury.”

(Pls.’ Sep Stmt. 9:22–23.) In response, Magic Mountain “denies that Magic

Mountain, LLC performed the SARC testing, as Magic Mountain, LLC did not employ any engineers qualified to perform SARC testing.” (Id. at 9:24–26.)

Plaintiffs argue that a further

response is warranted because “this should be a simple deny without the

surplusage. Code. Civ. Proc., § 2033.220(a–c). Magic Mountain can explain its denial in its Form Interrogatory 17.1 response.” (Id. at 10:1–3.) In opposition, Magic Mountain argues that it “has responded, without objection. ... Plaintiffs’ motion does not identify any statutory deficiency in these responses. Instead, Plaintiffs seek to compel Defendant to provide different answers that conform to Plaintiffs’ characterization of the evidence. The Discovery Act does not authorize such relief.” (Def.’s Sep. Stmt. 14:25–15:6.)

The Court agrees with Magic Mountain that no further responses are warranted. Accordingly, the motion is denied as to RFA No. 30.

2.
RFA Nos. 34–35

Plaintiffs’ RFA No. 34 asks Magic Mountain to “Admit that prior to June 23, 2022, YOU did not warn prospective riders that riding X2 could cause traumatic brain injury from head impacts.” (Pls.’ Sep Stmt. 11:26–28.) Plaintiffs’ RFA No. 35 asks Magic Mountain to “Admit that prior to June 23, 2022, YOU did not warn prospective riders that X2 had a history of guests reporting head impacts and head pain.” (Id. at 12:18–20.) In response, Magic Mountain asserted objections based on vagueness, legal conclusion, and relevance. (Id. at 12:1–5, 12:21–25.)

Plaintiffs argue that further responses are warranted because the language of the RFAs is clear, and each “RFA is on-point and relevant and calculated to lead to the discovery of admissible evidence. Whether Magic Mountain sufficiently warned about head injuries is an important issue in this case.” (Id. at 12:6–11.)

Magic Mountain’s supplemental response to RFA Nos. 34 and 35 state that “Responding Party denies that riding X2 could cause traumatic brain injury from head impacts to otherwise healthy riders and denies prior knowledge that the X2 could cause traumatic brain injury from head impacts to otherwise healthy riders. Responding Party denies that its signage did not provide information to riders. Responding Party answers that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Def.’s Sep. Stmt. 17:17–23; 19:17–21.)

Magic Mountain argues that “the motion is moot because Defendant served supplemental responses were served after expert discovery related to Plaintiff’s experts that provided declarations in support of summary judgment were completed. None of Plaintiffs’ experts dispute the adequacy or language of Defendant’s signage.” (Id. at 18:5–8.) “In its supplemental responses, Defendant withdrew the legal contentions, objections, and provided responses, without objection. Plaintiff’s motion is directed at objections that no longer exist. Because Defendant has withdrawn the challenged objections and provided substantive supplemental responses, Plaintiff must demonstrate that the supplemental responses themselves remain deficient.” (Id. at 19:2–6.)

Based on the foregoing, the Court finds that no further responses are warranted. Accordingly, the motion is denied as to RFA Nos. 34 and 35.

3.

RFA No. 46

Plaintiffs’ RFA No. 46 asks Magic Mountain to “Admit that compliance with ASTM Standards does not guarantee that X2 cannot cause traumatic brain injury.” (Pls.’ Sep Stmt. 22:17–19.) In response, Magic Mountain asserted objections based on vagueness, legal conclusion, expert opinion, and relevance. (Id. at 22:20–25.)

Plaintiffs argue that further responses are warranted because the language of the request is clear, and “ASTM compliance is a primary defense of Magic Mountain’s. Magic Mountain argued in its summary judgment briefing, and throughout this case, that ASTM compliance should shield it from liability. This directly speaks to that issue. ... the request is not vague as to time, it is asking about X2 being safe at the time of the incident.” (Id. at 24:4–8.)

Magic Mountain’s supplemental response to RFA No. 46 states that “Responding Party denies that the X2 caused traumatic brain injury. Responding Party further responds that Responding Party has made a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Def.’s Sep. Stmt.

42:5–8.) Magic Mountain therefore argues that the motion is moot as to RFA No. 46, and “the Discovery Act does not require Defendant to concede Plaintiff’s legal theories or admit disputed legal propositions.” (Id. at 42:26–27.)

Based on the foregoing, the Court finds that no further responses are warranted. Accordingly, the motion is denied as to RFA No. 46.

4.
RFA No. 48

Plaintiffs’ RFA No. 48 asks Magic Mountain to “Admit that even if X2 complied with ASTM Standards, X2 could still be defectively designed, negligently maintained, and/or unreasonably dangerous.” (Pls.’ Sep Stmt. 24:10–12.) In response, Magic Mountain asserted objections based on vagueness, legal conclusion, expert opinion, relevance, and speculation. (Id. at 24:13–18.)

Plaintiffs argue that further responses are warranted because the language of the request is clear, and “ASTM compliance is a primary defense of Magic Mountain’s. Magic Mountain argued in its summary judgment briefing, and throughout this case, that ASTM compliance should shield it from liability. This directly speaks to that issue. Fifth, the request is not vague as to time, it is asking about X2 being safe at the time of the incident.” (Id. at 24:13–18.)

Magic Mountain’s supplemental response to RFA No. 48 reiterates its objections, and states that “Responding [Party] denies that the X2 was defectively designed, negligently maintained, and/or unreasonably dangerous, and therefore, denies this request.” (Def.’s Sep. Stmt. 45:2–3.) Magic Mountain therefore argues that the motion is moot as to RFA No. 48. The Court agrees. Accordingly, the motion is denied as to RFA No. 48.

5.
RFA Nos. 53–54

Plaintiffs’ RFA No. 53 asks Magic Mountain to “Admit that feasible warnings or instructions existed prior to June 23, 2022 that could reduce the risk of rider head impacts and related brain injury.” (Pls.’ Sep Stmt. 27:1–3.) Plaintiffs’ RFA No. 54 asks Magic Mountain

to “Admit that feasible alternative designs and/or modifications existed prior to June 23, 2022 that could reduce the likelihood of rider head impacts on X2 passenger trains.” (Id. at 27:23–25.) In response, Magic Mountain asserted objections based on vagueness, expert opinion, and relevance. (Id. at 27:4–9, 27:26–28:2.)

Plaintiffs argue that Magic

Mountain’s objections are without merit. In opposition, Magic Mountain argues that no further responses are warranted because “both Requests assume that rider head impacts occurred, that such impacts created a risk of brain injury, and that alternative warnings, instructions, designs, or modifications were available and would have reduced the alleged risk. These assumptions mirror Plaintiffs’ liability theories and remain disputed factual questions that are the subject of expert testimony and ultimate determination by the trier of fact.” (Def.’s Sep. Stmt. 53:24–54:1.)

Based on the foregoing, the Court

agrees with Magic Mountain that RFA Nos. 53 and 54 “improperly assume disputed facts central to Plaintiffs’ claims and Defendant’s defenses.” (Id. at 54:6–7.)

Therefore, the Court finds that no further responses are warranted.

Accordingly, the motion is denied as to RFA Nos. 53 and 54.

C. Monetary Sanctions

“The court shall impose a monetary

sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2030.290, subd. (c).) Additionally, “the court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).)

Here, Plaintiffs request \$8,000.00

in monetary sanctions to be imposed against Magic Mountain and its counsel, encompassing 16 hours of Plaintiffs’ attorney’s time spent preparing the instant motion, at counsel’s hourly rate of \$500.00 per hour. (Foster Decl. ¶ 5.) In opposition, Magic Mountain argues that “the Court

should instead award Defendant their reasonable attorney's fees and costs incurred in opposing this unnecessary motion, in the amount of \$1,485.00." (Def.'s Opp. 16:15–16.)

Although the Court denies Plaintiffs' motion to compel Magic Mountain's further responses to RFA Nos. 30, 34, 35, 46, 48, 53, and 54, the Court notes that the imposition of sanctions would be unjust here, as Magic Mountain served its supplemental responses one day prior to filing their opposition to the instant motion. Accordingly, the Court declines to issue monetary sanctions.

CONCLUSION

The motion is denied. The Court declines to issue monetary sanctions.

LOS
ANGELES SUPERIOR COURT

NORTH
VALLEY DISTRICT

DEPARTMENT
F-51

JULY 7, 2026

MOTION TO COMPEL COMPLIANCE

Los Angeles Superior Court Case # 23CHCV02619

Motion
filed: 2/18/26 JURY TRIAL: 9/8/26

MOVING

PARTY: Plaintiffs

Anne Hawley and William Hawley, individually and as Successors in Interest to Decedent, Christopher Hawley (collectively, "Plaintiffs")

RESPONDING

PARTY: Defendants

Magic Mountain, LLC; and Six Flags

Entertainment Corporation (collectively, "Responding Defendants")

NOTICE: OK

RELIEF

REQUESTED: An

order (1) nonparty Uremet Corporation ("Uremet") to comply with Plaintiffs' deposition subpoena for production of business records, served on 1/13/26; and (2) confirming that all documents produced will receive a preliminary "confidential" designation pursuant to the terms of the existing protective order and Uremet's execution of Exhibit A thereto.

TENTATIVE

RULING: The

motion is denied as moot.

BACKGROUND

On 1/13/26,

Plaintiffs served a Deposition Subpoena for Production of Business Records on Uremet.

(Ex. 1 to Decl. of Timothy A. Loranger.) On 1/22/26, Responding Defendants served objections to the subject document subpoena. (Ex. 3 to Loranger Decl.)

On 2/18/26, Plaintiffs filed the instant motion to compel Uremet's compliance with the subject subpoena. On 5/6/26, Responding Defendants filed their opposition. On 5/13/26, Plaintiffs filed their reply.

ANALYSIS

"If a

deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc. § 2025.480, subd. (a).) When a nonparty is served with a deposition subpoena but fails to attend the deposition or

refuses to be sworn as a witness, the party that served the subpoena may move for an order directing compliance with the subpoena and imposing other terms or conditions as the judge considers appropriate. (Code Civ. Proc. § 1987.1, subd. (a).)

A. Meet and Confer

Here, Plaintiffs'

counsel asserts that on 2/2/26, he met with Responding Defendants' counsel "to discuss various discovery issues in the case, including the Uremet Subpoena. During our meet and confer, we were able to reach an agreement that would resolve her client's concerns about the documents and information sought from Uremet, as follows: All of the documents produced by Uremet would either be marked or considered to be marked 'confidential' and subject to the operative Protective Order. For any documents that contained financial information 'including invoices, billing, [and] contractual provisions related to pricing,' Ms. Cherazaie's office would review those documents for privileges related to 'financial privacy' and would serve such documents with redactions and provide a privilege log describing the privilege under which redactions were made, if any."

(Loranger Decl. ¶

12.)

"Uremet did not serve objections or move to quash by the Subpoena's compliance date. ... Instead, in meet-and-confer, Uremet confirmed it was refusing to respond based on Magic Mountain's generalized objection." (PLs.' Mot. 3:23–26.) Plaintiffs argue that "Uremet cannot use a party's former objection as a perpetual shield against a duly issued and properly served subpoena now that its own deadline to object has passed." (Id. at 4:5–7.)

Responding Defendants argue that

Plaintiffs improperly filed the instant motion "without sending the revised instructions or scope of production to Defendant for review, even though this was the parties' agreed upon procedure" pursuant to their meet and confer correspondence. (Defs.' Opp. 4:4–6.) "Accordingly, Plaintiffs' instant [motion] should have been avoided by Plaintiffs following the agreed upon procedures, which was that Plaintiff would provide a revised scope and instructions related to the subpoena to Uremet, for Defendants' review, and then the parties would cooperatively meet and confer with Uremet to resolve the subpoena production. Plaintiffs filing a motion for compliance, without following the agreed upon

procedure regarding the Uremet Corporation subpoena was a waste of judicial resources.” (Id. at 4:17–22.)

B.

Uremet’s

Document Production

Plaintiffs argue “the subpoenaed records are directly relevant. This is a fatality case in which wheels failed. Documents that explain how the wheels were designed and manufactured, identify what wheels were ordered and supplied, and address wheel performance and failures go to the heart of liability and causation.” (Pls.’ Mot. 9:1–4.)

In opposition, Responding

Defendants assert that the instant motion is moot because “on May 5, 2026, Uremet produced records in response to Plaintiffs’ subpoena, subject to confidentiality provisions and redaction of financial information, which Plaintiffs agreed could be attached to the initial production.” (Defs.’ Opp. 5:1–3.)

In reply, Plaintiffs maintain that

the motion is not moot because “the production appears limited to invoices, wheel inspection documents, and packing slips for 2021–2023. It does not include core technical materials requested by the subpoena, including urethane formulation documents, material-composition documents, design/specification materials, manufacturing documents, quality-control records, testing materials, communications, failure analyses, performance documents, or exemplar wheels.” (Pls.’ Reply 3:20–24.) “The production also contains redactions without explanation and without any accompanying privilege or redaction log.” (Id. at 4:2–3.) Therefore “Plaintiffs still seek either further

production of responsive documents or, if Uremet contends no further responsive documents exist, a proper verified statement and deposition of Uremet’s custodian of records concerning Uremet’s search, production, redactions, withheld materials, and compliance with the subpoena.” (Supp. Loranger Decl. ¶ 12.)

The Court notes that Uremet’s

responses and responsive document production are not proffered to the Court for review. Therefore, to the extent that Plaintiffs seek to compel the further production of responsive documents, this request is not properly made at this juncture. Based on the foregoing, the Court denies Plaintiffs’ motion to compel

Uremet's compliance with the document subpoena as moot.

C. Monetary Sanctions

"In making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc. § 1987.2, subd. (a).)

Here, Responding Defendants request that the Court impose \$1,485.00 in monetary sanctions against Plaintiffs and their counsel because Responding Defendants "incurred substantial expenses to oppose a motion, which was prematurely filed without Plaintiffs exhausting meet and confer attempts with Uremet Corporation." (Defs.' Opp. 7:15–17.) In opposition, Plaintiffs argue that "A nonparty does not ignore a subpoena, wait more than three months after a motion to compel is filed, make a limited production with unexplained redactions, and then have another party seek sanctions against the moving party for forcing compliance." (Pls.' Reply 6:23–25.)

Plaintiffs further "respectfully request that the Court award the monetary sanctions requested in Plaintiffs' moving papers." (Id. at 7:14–15.) However, the Court notes that Plaintiffs did not request monetary sanctions in connection with bringing the instant motion.

Based on the foregoing, the Court exercises its discretion to decline to impose monetary sanctions against either party.

CONCLUSION

The motion is denied as moot.

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 7, 2026

MOTION TO COMPEL FURTHER
DISCOVERY RESPONSES

(Requests for
Production of Documents, Set Five)

Los Angeles Superior Court
Case # 23CHCV02619

Motion

filed: 4/23/26 JURY TRIAL: 9/8/26

MOVING

PARTY: Defendant

Magic Mountain, LLC ("Magic Mountain")

RESPONDING

PARTY: Plaintiffs

Anne Hawley and William Hawley, individually and as Successors in Interest to
Decedent, Christopher Hawley (collectively, "Plaintiffs")

NOTICE: OK

RELIEF

REQUESTED: An

order compelling Plaintiffs' further responses to Magic Mountain's Form Requests
for Production of Documents ("RFPs"), Set Five, Nos. 132–166. Magic Mountain
also seeks \$2,865.00 in monetary sanctions against Plaintiffs and their
counsel.

TENTATIVE

RULING: The

motion is denied. The Court declines to issue monetary sanctions.

BACKGROUND

On 1/19/26, Magic Mountain served its RFPs, Set Five, on Plaintiffs. (Decl. of Justin M. Ostrosky ¶¶ 1–2.) On 3/4/26, Plaintiffs each served their responses thereto. (Id. at ¶¶ 5–6.)

On 4/23/26, Magic Mountain filed the instant motion to compel further responses to its RFPs, Set Five. On 6/24/26, Plaintiffs filed their opposition. On 6/30/26, Magic Mountain filed its reply.

ANALYSIS

California law requires a responding party to respond to each request for production of documents with either a statement of compliance, a representation that the party lacks the ability to comply, or an objection to the demand. (Code Civ. Proc. § 2031.210, subd. (a).) If the response includes an objection to the demand in part, it must also include a statement of compliance or noncompliance as set forth above. (Code Civ. Proc. § 2031.240, subd. (a).) Additionally, the response must (1) identify the particular document that falls within the category of the request to which the objection is being made, and (2) expressly set forth the extent of, and specific ground for, the objection. (Id. at subd. (b).) A propounding party may move for an order compelling further response to a discovery request if it decides that “an objection in the response is without merit or too general.” (Code Civ. Proc. § 2031.310, subd. (a).)

Here, Magic Mountain seeks to compel Plaintiffs’ further responses to Nos. 132–166, which seek the production of all documents Plaintiffs identified in Plaintiffs’ responses to Magic Mountain’s Special Interrogatories, Set Four (RFP No. 132), and documents relied upon by Plaintiffs in preparing those responses (RFP Nos. 133–166).

A. Meet and Confer

A motion to compel further discovery responses must be accompanied by a meet and confer declaration stating “facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc. §§ 2031.310, subd. (b)(1); 2016.040.)

Here, Magic

Mountain's counsel asserts that on 4/9/26, she sent Plaintiffs' counsel a meet and confer letter regarding the issues raised in the instant motion, but the parties were unable to come to an informal resolution. (Cherazaie Decl. ¶¶ 7–8.) While Plaintiffs dispute the good faith nature of the meet and confer efforts, the Court finds that counsel has satisfied the preliminary meet and confer requirements under Code of Civil Procedure section 2031.310, subdivision (b)(1).

B.

RFPs

Magic Mountain asserts that “these requests for documents are relevant to Plaintiff’s public statements provided to various media outlets concerning the subject incident and lawsuit (RFP 132-139), Plaintiffs’ communications with the Los Angeles Sheriff’s Office (RFP 140-145), Plaintiffs’ communications with the Los Angeles Fire Department (RFP 146-149), and Plaintiffs’ communications with the Los Angeles Medical Examiner (RFP 150- 154), regarding the public agencies’ investigations into Decedent Christopher Hawley.” (Def.’s Mot. 6:13–18.) “Requests for Production Numbers 155-166 asked Plaintiff to produce documents supporting their contention that the wheels on the X2 ride were either defective, required replacement, or repairs, which are the contentions that formulate the basis of Plaintiffs’ opposition to Defendants’ filed motions for summary judgment in this case.” (Id. at 6:23–26.)

In response RFP No. 132, Plaintiffs asserted objections and agreed to “produce the non-privileged, responsive documents that have not been previously produced that are within their possession, custody, and control.” (Def.’s Sep. Stmt. 2:12–13.) In response to RFP Nos. 133–166, Plaintiffs objected that each request “improperly seeks disclosure of attorney opinion work product, including counsel’s mental impressions, document selection, and litigation strategy, in violation of Code of Civil Procedure section 2018.030(a). Responding Party further objects to the extent this Request seeks expert materials prior to the statutory exchange of expert information under Code of Civil Procedure section 2034.210 et seq.” (Id. at 6:27–7:3.)

Magic Mountain argues that further responses are warranted because “Plaintiffs failed to provide complete and

straightforward responses and Plaintiffs failed to identify if Plaintiffs production was in full, or partial, based on objections. Plaintiffs also failed to produce a privilege log related to documents withheld based on privilege.” (Def.’s Mot. 6:26–7:2.)

In opposition, Plaintiffs argue that no further responses to RFP No. 132 are required because “the documents were all identified and produced.” (Pls.’ Opp. 6:22–23.) Plaintiffs maintain that their attorney work product objections to RFP Nos. 133–166 are valid because “the RFPs seek documents ‘relied upon in preparing your response.’ That is plainly and exclusively work product like attorney drafts and internal memos.” (Id. at 7:2–3.)

The attorney work product doctrine protects writings reflecting “an attorney’s impressions, conclusions, opinions, or legal research or theories” from being discoverable under any circumstances. (Code Civ. Proc. § 2018.030, subd. (a).) “The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” (Id. at subd. (b).)

Here, Plaintiffs argue that RFP Nos. 133–166 are deficiently drafted to seek privileged materials because “attorneys do not rely on documents not identified in preparing their responses.” (Pls.’ Opp. 7:6.) Plaintiffs further argue that a privilege log would be futile because “Magic Mountain asked for documents relied upon in preparing responses, not a more general category that could include other non-privileged documents. Here, the only documents relied upon are work product.” (Id. at 7:14–16.)

In reply, Magic Mountain argues that “Plaintiffs assume that because counsel necessarily reviewed documents in preparing responses to Special Interrogatories, every responsive document sought by Requests for Production Nos. 133-166 constitutes protected work product. This assertion is incorrect. Responsive documents may include factual materials such as photographs, videos, statements, maintenance records, investigative materials, and other relevant records. Such documents do not become privileged simply because they were reviewed by counsel during the preparation of discovery responses.” (Def.’s Reply 8:13–18.) Magic Mountain

argues that “Plaintiffs’ position is particularly untenable because they seek a blanket exemption without identifying a single document withheld on work product grounds. They have not served a privilege log, identified any specific privileged document, or provided evidence demonstrating that every responsive document consists exclusively of attorney impressions or opinion work product.” (Id. at 8:26–9:2.)

Based on the foregoing, the Court agrees with Plaintiffs that no further responses to RFP No. 132 are warranted, and that RFP Nos. 133–166 are deficiently drafted so as to seek the production of documents protected by the attorney work product privilege. Accordingly, the motion is denied.

C.

Sanctions

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to [discovery requests], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.310, subd. (h).) Additionally, “the court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).)

Here, Magic Mountain requests \$2,865.00 in monetary sanctions against Plaintiffs and their counsel, encompassing (1) 6 hours of Magic Mountain’s attorney’s time spent preparing the instant motion; (2) an anticipated 2 hours reviewing the opposition and preparing a reply; and (3) an anticipated 1.5 hours appearing at the hearing on the motion, at counsel’s hourly rate of \$300.00 per hour. (Ostrosky Decl. ¶ 9.) Magic Mountain also seeks to recover \$60.00 in filing fees. The Court notes that the total sum of the above is \$2,910.00.

In opposition, Plaintiff argues that the Court should issue sanctions against Magic Mountain in the amount of \$7,000.00 because the “motion is an erroneous, needless motion that lacks merit. Plaintiffs submit that this motion’s only purpose can be

harassment.” (Pls.’ Opp. 10:10–11.) Based on the foregoing, the Court finds that the imposition of monetary sanctions would be unjust because each party acted with substantial justification in this bona fide discovery dispute.

CONCLUSION

The motion is denied. The Court declines to issue monetary sanctions.